

INTRODUCTION

For over a century, the Supreme Court has recognized that some degree of immunity is necessary to protect public employees from personal damages suits that would interfere with the effective functioning of government. Defining that immunity has proved difficult, however. Some applications, such as Speech or Debate and Presidential immunities, are grounded in the Constitution itself and are not subject to serious challenge. Others, while rooted in our common law traditions, are essentially judge-made doctrines that have been altered as courts have been confronted with novel theories of liability. At times, this change has been dramatic. In 1978, for example, the Supreme Court adopted a qualified immunity standard for federal officials that had been applied for several years in suits against state officials, only to reject it four years later after the Court found the standard unworkable.

To a large extent, the uncertainty that surrounds the immunity area is attributable to the courts' own ambivalence toward the concept. By its very nature, immunity runs counter to the judge's natural inclination to resolve a case on its merits as well as the tendency of many courts to permit damages actions in order to effect judicial oversight of the operations of the Executive Branch. Thus, even when favorable Supreme Court immunity pronouncements